

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Vale	Team: Squad #06	CCRB Case #: 201710653	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/21/2017 12:45 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/21/2019	Precinct: 32		
Date/Time CV Reported Mon, 12/25/2017 5:42 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 12/25/2017 5:42 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Danny Sun	20206	959280	032 PCT
2. POF Beatriz Ceballos	24000	957440	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Javad Valad	00000	937665	032 PCT
2. DTS Salahudin Clark	796	941566	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Danny Sun	Abuse: Police Officer Danny Sun entered § 87(2)(b) in Manhattan.	A . Exonerated
B . POF Beatriz Ceballos	Abuse: Police Officer Beatriz Ceballos entered § 87(2)(b) in Manhattan.	B . Exonerated
C . POF Beatriz Ceballos	Abuse: Police Officer Beatriz Ceballos searched § 87(2)(b)'s backpack.	C . Substantiated
D . POF Beatriz Ceballos	Abuse: Police Officer Beatriz Ceballos searched § 87(2)(b) in Manhattan.	D . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the Civilian Complaint Review Board on December 25, 2017, via the CCRB on-line website.

On December 21, 2017, at 12:45 a.m. § 87(2)(b) was inside of his single-room occupancy apartment located at § 87(2)(b) in Manhattan, when Police Officers Danny Sun and Beatriz Ceballos of the 32nd Precinct knocked on the door. § 87(2)(b) had been involved in a physical altercation with his partner, § 87(2)(b) earlier in the evening. § 87(2)(b) opened the apartment door slightly open. PO Sun and PO Ceballos entered § 87(2)(b)'s apartment (**Allegations A and B: Abuse of authority, exonerated**). PO Ceballos proceeded to search § 87(2)(b)'s backpack which was located inside of § 87(2)(b)'s room (**Allegation C: Abuse of authority, substantiated**) before searching his desk drawer (**Allegation D: Abuse of authority, unsubstantiated**). § 87(2)(b) was eventually arrested for § 87(2)(b).

Video Footage

No video footage was obtained for this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Danny Sun entered § 87(2)(b) in Manhattan.

Allegation B – Abuse of Authority: Police Officer Beatriz Ceballos entered § 87(2)(b) in Manhattan.

§ 87(2)(g).

During § 87(2)(b)'s CCRB online complaint, which was later submitted as a notarized statement (BR 01 and 03), § 87(2)(b) stated that an officer continuously knocked on the door and identified himself as a male officer. § 87(2)(b) opened the door and observed several officers standing outside. One of the officers asked for permission to enter and he refused. During § 87(2)(b)'s first and second phone statement (BR 02 and 04), he stated that as he was inside of his room he overheard someone standing outside of the door. He then threw a pot at the door. Shortly after, § 87(2)(b) heard knocking on the door. A few minutes later, § 87(2)(b) opened the door and spoke to an officer who stated that officers were called to the location in regards to a fight. § 87(2)(b) denied that a fight had occurred and attempted to close the door. At this time, several officers entered the room.

During § 87(2)(b)'s third phone statement (BR05), § 87(2)(b) stated that he refused to open the door for the officers for several minutes. § 87(2)(b) eventually opened the door just enough to stick his head out and saw PO Ceballos standing in the hallway. PO Ceballos pushed her way past § 87(2)(b) to gain entry into the room. Lt. Valad immediately entered behind PO Ceballos and additional officers, including PO Sun, entered the room sometime later. § 87(2)(b) was informed later on after his arrest that a neighbor alleged that § 87(2)(b) hit his partner § 87(2)(b) with a gold club. § 87(2)(b) denied taking this action and added that he did not have a golf club. An officer informed § 87(2)(b) that the golf club was in the officers' possession and would be used as arrest evidence.

§ 87(2)(b) a witness to the dispute between § 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) and § 87(2)(b) had thrown shoes at one another (BR06). § 87(2)(b) went to § 87(2)(b)'s room located next door. Sometime later, § 87(2)(b) entered § 87(2)(b)'s bedroom

and struck § 87(2)(b) with a golf club before returning to his own room. § 87(2)(b) went to the first floor accompanied by § 87(2)(b) as he feared that § 87(2)(b) would hurt him further. § 87(2)(b) then called the police to report the assault.

The CCRB was unable to obtain a statement from § 87(2)(b) regarding this incident.

The initial 911 Call for this incident at 12:43 a.m., noted that 911 caller § 87(2)(b) reported that a male assaulted his roommate with a golf club and that the victim had injuries including bleeding on the face (BR07).

Events #§ 87(2)(b) confirmed that PO Sun and PO Ceballos, assigned to Sector 32A-1, arrived to the location at 12:46 a.m., three minutes after the initial 911 call (BR08). At 1:03 a.m., Sector 32A-1 went over the radio noting one individual under arrest. At 1:16 a.m., Lt. Valad, assigned to 32LT1, arrived to the location to verify the arrest. Based off this information, the investigation determined that PO Sun and PO Ceballos were the first officers on scene and were the first ones to enter § 87(2)(b)'s room.

PO Sun stated that both he and PO Ceballos responded to the location in regards to a 911 call for an assault (BR09). PO Sun encountered § 87(2)(b) in the building lobby and observed visible injuries to his face. § 87(2)(b) informed PO Sun that § 87(2)(b) struck him on the face with a stick. PO Sun and PO Ceballos went upstairs to § 87(2)(b)'s single-room occupancy apartment. PO Sun knocked on the door and § 87(2)(b) waited one minute before opening the door. PO Sun remained in the hallway outside of the room while § 87(2)(b) stood inside of the room. PO Sun instructed § 87(2)(b) to turn around and placed him in handcuffs. PO Sun denied that he and PO Ceballos entered the room.

PO Ceballos stated that upon arrival to the building lobby, she and PO Sun encountered § 87(2)(b) who had a laceration on his nose with dry blood and a bruise to his right leg (BR10). § 87(2)(b) was with a neighbor. PO Ceballos did not recall if § 87(2)(b) or his neighbor called 911 to report the assault by § 87(2)(b). At this time, Lt. Javad Valad and Det. Salahudin Clark of the 32nd Precinct responded to the location. Approximately 10 – 15 minutes later, all four officers proceeded to go towards § 87(2)(b)'s room. An officer knocked on the door which § 87(2)(b) opened two minutes later. Officers remained in the hallway while speaking to § 87(2)(b) about the assault. A few minutes later, Lt. Valad and Det. Clark entered § 87(2)(b)'s room and placed him under arrest. PO Ceballos did not recall if officers asked § 87(2)(b) for permission to enter or if he invited the officers into the apartment. PO Ceballos entered the room as § 87(2)(b) was removed from the room. She did not recall if PO Sun entered the room with her.

Lt. Valad stated that he received a phone call from an officer asking for a supervisor to the location to verify the arrest of § 87(2)(b) (BR11). Lt. Valad did not recall which officer made the call. Upon arrival to the building lobby, Lt. Valad observed § 87(2)(b) with black bruising to his right eye, scratches on his face, and slight bleeding from the nose. Lt. Valad went to § 87(2)(b)'s room where the door was left wide open and saw that PO Sun and PO Ceballos were inside with § 87(2)(b). Lt. Valad was not informed as to how PO Sun and PO Ceballos gained entry into the location. Lt. Valad entered the room and stood by the doorway with Det. Clark as he spoke with § 87(2)(b), PO Sun, and PO Ceballos about the incident.

Det. Clark had no independent recollection of this incident.

Arrest Report #§ 87(2)(b) noted that § 87(2)(b) was arrested for § 87(2)(b) which was a violent felony (BR12).

Property Voucher #§ 87(2)(b) noted that a blue metal stick was vouchered as arrest evidence against § 87(2)(b) (BR13).

NYS Penal Law 120.05(01) stated that a person is guilty of assault in the second degree when with intent to cause serious physical injury to another person, he causes such injury to such person or to a third person (BR14).

NYS Penal Law 120.05(02) stated that a person is guilty of assault in the second degree when with intent to cause physical injury to another person, he causes such injury to such person or to a third person by means of a deadly weapon or a dangerous instrument (BR14).

Officers may enter a private dwelling to effect an arrest without a warrant only when exigent circumstances exist. The following factors should be considered in order to determine whether exigent circumstances are present: the gravity of a crime the suspect is to be charged with, whether the subject is reasonably believed to be armed, the clear showing of probable cause for arrest, strong reason to believe that the perpetrator is in the premises, a likelihood of the subject's escape, and the peaceful circumstances of the entry. People v. McBride, 14 N.Y. 3d 440 (BR15).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C – Abuse of Authority: Police Officer Beatriz Ceballos searched § 87(2)(b)'s backpack.

It is undisputed that PO Ceballos searched § 87(2)(b)'s backpack while inside of his room.

During § 87(2)(b)'s CCRB online complaint, first phone statement, and notarized statement, § 87(2)(b) alleged that officers searched his backpack. During his two follow-up phone statements, § 87(2)(b) clarified that PO Ceballos was the only officer that walked over to his desk where he left his backpack. PO Ceballos picked up the backpack and emptied the contents, which included several sterile syringes, onto the bed. PO Ceballos did not explain to § 87(2)(b) why she had taken this action and did not ask him any questions. § 87(2)(b) acknowledged that as he was being escorted outside of the room, PO Ceballos asked him if he had identification which he retrieved from underneath his mattress and provided to PO Ceballos.

PO Ceballos acknowledged that after § 87(2)(b) was removed from the room in handcuffs following a lawful arrest, she proceeded to look for § 87(2)(b)'s identification inside of the room in order to verify § 87(2)(b)'s identity. Although § 87(2)(b)'s partner § 87(2)(b) provided § 87(2)(b)'s name, officers needed documentation verifying § 87(2)(b)'s identity. PO Ceballos located a backpack on the floor inside of the room. She lifted up the backpack and emptied the contents, which included several hypodermic needles, onto the bed. PO Ceballos became concerned after observing the needles and left the backpack with all of its contents on the bed before leaving the apartment. PO Ceballos was provided with § 87(2)(b)'s identification at the stationhouse. However, she did not recall which officer handed it to her.

When an individual subjected to arrest has a privacy interest in property within his or her immediate control or “grabbable area,” the court has identified two interests that may justify the warrantless search of that property incident to a lawful arrest: the safety of the public and the arresting officer; and the protection of evidence from destruction or concealment. People v. Gokey, 60 N.Y.2d 309, 311 (1983) (BR16).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) It is therefore recommended that **Allegation C** be **substantiated**.

Allegation D – Abuse of Authority: Police Officer Beatriz Ceballos searched § 87(2)(b) in Manhattan.

During § 87(2)(b)'s CCRB online complaint, initial phone statement, and notarized statement, § 87(2)(b) made no mention of PO Ceballos searching his room aside from searching his backpack. He did not allege that any of his property was damaged while PO Ceballos searched the room. During a second phone statement, § 87(2)(b) alleged that after PO Ceballos searched his backpack, she proceeded to “break” a locked desk drawer and looked inside of it. § 87(2)(b) did not specify what he meant by break, and therefore, a property damage allegation was not pleaded. During a third phone statement, § 87(2)(b) once again made no mention of PO

Ceballos searching his room past the search of his backpack and did not allege that any of his personal belongings were damaged during a more intrusive search.

PO Ceballos acknowledged that she conducted a visual inspection of the top of § 87(2)(b)'s desk but denied opening and entering any of the desk compartments to look inside.

PO Sun and Lt. Valad had no recollection of PO Ceballos looking into any of § 87(2)(b)'s belongings. As previously stated, Det. Clark had no recollection of this incident.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b).
- PO Sun has been a member-of-service for two years and this is the first CCRB complaint to which he has been a subject (see officer history).
- PO Ceballos has been a member-of-service for three years and she is currently the subject of two open CCRB complaints (see officer history).

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to § 87(2)(b)'s arrest.
- As of July 5, 2018, the New York City Officer of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR17).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 6

Investigator: _____

Signature _____

Investigator Diana Vale _____

Print Title & Name _____

Date _____

Squad Leader: _____ Investigative Manager Jessica Peña _____
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____